

BEFORE THE FEDERAL MARITIME COMMISSION

INTERMODAL MOTOR CARRIERS CONFERENCE,	)	
AMERICAN TRUCKING ASSOCIATIONS, INC.	)	
	)	
Complainant,	)	
	)	
v.	)	
	)	FMC Docket No. 20-14
OCEAN CARRIER EQUIPMENT MANAGEMENT	)	
ASSOCIATION, INC.; CONSOLIDATED CHASSIS	)	DECLARATION OF
MANAGEMENT, LLC; CMA CGM S.A.; COSCO	)	CHRISTOPHER RALEIGH IN
SHIPPING LINES CO. LTD.; EVERGREEN LINE	)	OPPOSITION TO
JOINT SERVICE AGREEMENT, FMC NO. 011982;	)	COMPLAINANT'S MOTION TO
HAPAG-LLOYD AG; HMM CO. LTD.; MAERSK	)	COMPEL AND IN SUPPORT OF
A/S; MSC MEDITERRANEAN SHIPPING	)	RESPONDENTS' CROSS
COMPANY S.A.; OCEAN NETWORK EXPRESS	)	MOTION FOR AMENDMENT
PTE. LTD.; WAN HAI LINES LTD.; YANG MING	)	OF SCHEDULING ORDER
MARINE TRANSPORT CORP.; AND	)	
ZIM INTEGRATED SHIPPING SERVICES,	)	
	)	
Respondents.	)	
	)	

CHRISTOPHER RALEIGH, hereby declares as follows:

1. I am a member of Cozen O'Connor, P.C., attorneys for Respondents¹ in this proceeding.
2. I am a member in good standing of the Bars of the States of New York and New Jersey and the United States District Courts for the Southern and Eastern Districts of New York and the District of New Jersey, and have filed an appearance in this proceeding.
3. I have personal knowledge of the facts set forth herein, and am fully familiar with the proceedings in this case.

¹ Other than Hapag-Lloyd AG and Yang Ming Marine Transport Corporation, and as co-counsel for Evergreen Line Joint Service Agreement.

4. I submit this Declaration in opposition to the Complainant's Motion to Compel and for Sanctions (the "Motion") against MSC Mediterranean Shipping Company S.A., ZIM Integrated Shipping Services, COSCO Shipping Lines Co Ltd. and Wan Hai Lines Ltd. (collectively, the "Motion Respondents") and in support of all Respondents' Cross Motion for an amendment of the Scheduling Order.

The Motion Respondents' Productions

5. Pursuant to the ESI Stipulation, Respondents provided search terms to Complainant's counsel that they proposed to employ in the search for documents responsive to Complainant's Requests for Production of Documents on April 21, 2021. Complainant's counsel served search terms which were far broader, but which Respondents' counsel confirmed would be incorporated. True and accurate copies of these emails between Respondents' and IMCC's counsel are annexed hereto as Exhibit 1.

6. We have been advised by the Motion Respondents that their respective productions were delayed for the following reasons:

- ZIM experienced a number of technical issues that delayed the transmittal of its data, the vast majority of which is stored outside of the United States. In order to comply with privacy and security requirements in a number of jurisdictions, ZIM employs rigorous security procedures and authorizations prior to release of the type of data responsive to the Complainant's Requests for Production. Given the size of the potentially responsive data set, which exceeded one Terabyte, transfer in accordance with privacy and security protocols required encryption of each individual file, transfer to physical media and an internal review / audit of the files to ensure compliance with protocols before the data set could be forwarded to counsel. The review of ZIM's documents is completed and the production is expected to be transmitted today.
- COSCO's servers in the U.S. were the target of a breach which compromised its data. This required that data be obtained from back-up drives in China. COSCO's data has been received and the review and production of this data is expected to be completed within the next week.

- Wan Hai is a small company which, at the times alleged in the Complaint, operates only “in one non-CCM port”, specifically Los Angeles and Long Beach. Wan Hai personnel experienced a tremendous increase in operational responsibilities arising from the Covid-19 pandemic. Access to the servers which contained its data was limited by the pandemic and transfer has been further delayed by firewalls designed to protect against breaches. The data is expected to be received by September 16 and, if received on or about that date, we expect the review and production will be completed by the end of next week.
- MSC’s data is maintained in servers located in Switzerland and transmittal was delayed due to compliance issues under Swiss privacy laws. The requests were first evaluated by MSC’s headquarters in Geneva to determine the legality of compliance under Swiss law, a process which took a considerable period of time. There were also IT issues, because the data was maintained in Geneva and it took time to provide access for the conduct of initial searches from the U.S. and collect the data. Finally, the data collection was a substantial undertaking given the very broad search parameters and the size of the data base. Further delay was encountered because the data became corrupted during electronic transmittal, requiring it to be physically delivered on a hard drive. Given the size of this data base, we expect review and production will be completed during the week of September 27.

IMCC Member Productions

7. A true and accurate copy of a schedule of the documents accompanying the subpoenas (“Request for Documents”) served on the non-party motor carriers which are members of the IMCC (“IMCC Members”) is annexed hereto as Exhibit 2. The Requests for Documents served on each of the IMCC Members are identical.

8. Following a meet and confer to resolve objections by Complainant’s counsel to the Requests for Production, I confirmed those categories of documents that would satisfy the requests for certain information from the subpoenaed IMCC Members in a May 19, 2021 email. A true and accurate copy of this email is annexed hereto as Exhibit 3.

9. Thereafter, in an email dated May 20, 2021, IMCC’s counsel confirmed their agreement to produce certain categories of documents. A true and accurate copy of this email is annexed hereto as Exhibit 4.

I declare that the foregoing is true and correct, executed this 14th day of September, 2021,
in New York, New York.

/s/ Christopher Raleigh
Christopher Raleigh
Cozen O'Connor, P.C.

EXHIBIT 1

Raleigh, Christopher

From: Fore, Wyatt <wfore@constantinecannon.com>
Sent: Monday, April 26, 2021 4:58 PM
To: Raleigh, Christopher; Golden, David; Cannon, Stephen; Greenstein, Seth; Levine, Richard; Rodriguez Lopez, Paulette; Samantar, Osob; rpianka@trucking.org
Cc: Gerald.Morrissey@hklaw.com; chris.nolan@hklaw.com; pkeane@cckd-ny.com; jdemay@cckd-ny.com; drose@mdslaw.com; Rohde, Wayne; Sobotta, Kathryn
Subject: Re: FMC Docket No. 20-14, IMCC v. OCEMA, et al.

****EXTERNAL SENDER****

Counsel:

Please see below for the list of preliminary search terms that IMCC intends to use in its search for documents responsive to Respondents' Requests for Production. Thanks, and please let me know if you have any questions or concerns.

Searches related to chassis choice

- ("Chassis provision" OR "provision model" OR "chassis choice" OR "open choice" OR "chassis paradigm") AND ("merchant haulage" OR "carrier haulage" OR "MH" OR "CH")
- (manag* OR operat* OR "use" OR "usage" OR "preferred") AND ("chassis" OR "chassis provider")
- ("Default provider" OR "UPC provider" OR designat* OR allow* OR "consent" OR exclusiv* OR dedicat* OR "single") AND ("chassis" OR "customer" OR "CCM" OR "chassis management")
- (Request* OR permission* OR denial* OR except* OR "change" OR RFP OR RFQ) AND ("chassis" OR "merchant haulage" OR "carrier haulage" OR "MH" OR "CH")
- "Billable rights" AND ("TRAC" OR "DCLI" OR "FLEXI")
- "Section 5.7"
- "trucker choice"

Searches related to reassigning chassis on MH movements other than the default provider

- (Reassign* OR "default provider" OR "default" OR "exception") AND ("merchant haulage" OR "MH")
- ("free day" OR "free days") AND "chassis"

Searches related to documents reflecting difference in price for CH vs. MH

- (Pric* OR "chassis rental" OR fee* OR discount* OR rebat* OR sav*) AND ("MH" OR "merchant haulage" OR "CH" OR "carrier haulage")
- ("MH price" OR "CH price") AND ("IEP" OR "equipment provider" OR "TRAC" OR "DCLI" OR "FLEXI")
- "direct bill*" AND "BCO"
- "Evergreen" AND "per diem"

Searches related to Contracts with IEPs

- reimburs* AND ("motor carrier" OR truck* OR "customer")
- (Pric* OR "chassis rental" OR fee* OR leas*) AND ("IEP" OR "equipment provider" OR "TRAC" OR "DCLI" OR "FLEXI")
- ("market share" OR manag* OR compet* OR monop* OR exclusiv*) AND "chassis"
- ("chassis us*" OR agree*) AND ("IEP" OR "equipment provider" OR "TRAC" OR "DCLI" OR "FLEXI")

- ("feedback" OR respons* OR examin*) AND ("IEP" OR "equipment provider" OR "TRAC" OR "DCLI" OR "FLEXI")
- ("MH" OR "merchant haulage" OR "CH" OR "carrier haulage") AND "volume"
- ("MH moves" OR sav* OR percent* OR "pct") AND ("equipment provider" OR "TRAC" OR "DCLI" OR "FLEXI")

Searches related to the Pool of Pools

- "Pool of Pools" OR "POP"
- ("Long Beach" OR "Los Angeles" OR "LA/LB") AND (operation* OR manag*)
- "box rules"

Searches related to GCCP and COCP

- ("erode" OR eliminat* OR withdraw* OR strateg*) AND "Gulf"
- "Gulf chassis" AND ("supply" OR solution*)
- ("GCCP" OR "Gulf") AND ("erode" OR eliminate* OR "shut down" OR "wind down" OR withdraw*)
- "COCP" AND (design* OR "chassis" OR agree*)
- ("Chicago" OR "Chicago Ohio Valley") AND "chassis choice"
- ("Chicago" OR "Chicago Ohio Valley") AND ("erode" OR eliminate* OR "shut down" OR "wind down" OR withdraw*)
- ("cost" OR sav* OR inefficienc*) AND ("Chicago" OR "Chicago Ohio Valley" OR "COCP" OR "GCCP" OR "Gulf chassis")

Searches related to interoperability and efficiencies

- "Neutral" OR interoperab* AND ("chassis pool" OR pool*)
- "Supply" OR "customer question*" OR complaint* AND ("chassis" OR "chassis charges")
- (disadvantag* OR advantag* OR interoperability*) AND "chassis"
- ("gray pool" OR "grey pool" OR interoperab*) AND "Memphis"
- ("merchant haulage" OR "MH") AND "overcharge"
- ("carrier haulage" OR "CH") AND "undercharge"

Misc

- "Evergreen" AND ("SACP" OR "South Atlantic Chassis Pool")
- ("minutes" OR "notes" OR memo*) AND (Complaint AND (FMC OR "Federal Maritime Commission"))
- ("minutes" OR "notes" OR memo*) AND ("merchant haulage" OR "MH")
- (barrier* OR obstacle OR "can't" OR "cost" OR inefficienc* OR flip*) AND ("proprietary" OR (own* /5 ("motor carrier" OR BCO OR "trucker"))) AND "chassis"
- "OCEMA" OR "Ocean Carrier Equipment Management Association"

Sincerely,
Wyatt Fore

From: Raleigh, Christopher <CRaleigh@cozen.com>

Sent: Thursday, April 22, 2021 4:03 PM

To: Golden, David <dgolden@constantinecannon.com>; Fore, Wyatt <wfore@constantinecannon.com>; Cannon, Stephen <scannon@constantinecannon.com>; Greenstein, Seth <sgreenstein@constantinecannon.com>; Levine, Richard <rlevine@constantinecannon.com>; Rodriguez Lopez, Paulette <prodriguezlopez@constantinecannon.com>; Samantar, Osob <osamantar@constantinecannon.com>; rpianka@trucking.org <rpianka@trucking.org>

Cc: Gerald.Morrissey@hklaw.com <Gerald.Morrissey@hklaw.com>; chris.nolan@hklaw.com <chris.nolan@hklaw.com>; pkeane@cckd-ny.com <pkeane@cckd-ny.com>; jdemay@cckd-ny.com <jdemay@cckd-ny.com>; drose@mdslaw.com

Raleigh, Christopher

From: Raleigh, Christopher
Sent: Wednesday, April 21, 2021 3:59 PM
To: 'Golden, David'; Cannon, Stephen; Greenstein, Seth; Levine, Richard; Fore, Wyatt; Rodriguez Lopez, Paulette; Samantar, Osob; rpianka@trucking.org
Cc: Gerald.Morrissey@hklaw.com; chris.nolan@hklaw.com; pkeane@cckd-ny.com; jdemay@cckd-ny.com; drose@mdslaw.com; Rohde, Wayne; Sobotta, Kathryn
Subject: RE: FMC Docket No. 20-14, IMCC v. OCEMA, et al.

David,

Below are the terms which Respondents propose to employ in their respective searches for documents responsive to the Requests for Production served by IMCC:

ATA
American Trucking Associations, Inc.
Bill days
Box Rules
CCM
CCMP
CCMP Agreement
CCMP Operations Manual
Carrier Haulage
CH
Chassis
Chassis choice
Chassis exception
Chassis pool
Chassis provider
Chassis provision
Chassis rental
Chassis usage
Chicago & Ohio Valley Consolidated Chassis Pool
Consolidated Chassis Management
DCLI
Default provider
Denver Consolidated Chassis Pool
Direct Chassis Link
ExCom
Executive Committee
Flexi
Flexi-Van
FMC Agreement No. 011962
Free days
Gray chassis pool
Gray pool
Gulf Consolidated Chassis Pool
IEP
IMCC

Intermodal Motor Carriers Conference
Intermodal Equipment Provider
Interoperable
Interoperability Matters!
Memphis Study Supply Chain Innovation Team
Merchant Haulage
MH
Mid-South Consolidated Chassis Pool
Mid-West Chassis Pool
Neutral Chassis Pool
Neutral pool
Ocean Carrier Equipment Management Association
OCEMA
Ohio Valley Consolidated Chassis Pool
Ops Council
Ops Manual
Operations Council
Operations Manual
Per diem
Pool of Pools
POP
RFP (and chassis)
RFQ (and chassis)
Request for Proposal (and chassis)
Request for Quote or quotation (and chassis)
SSC
Section 5.7
Senior Steering Committee
South Atlantic Chassis Pool
Trac
Trucker choice
Uniform Intermodal Interchange Agreement
UIIA

The above list has been reviewed and approved by all counsel of record for the Respondents.

Sincerely,



Christopher Raleigh
Member | Cozen O'Connor
3 WTC, 175 Greenwich Street - 55th Floor | New York, NY 10007
P: 212-908-1245 F: 866-591-9125
[Email](#) | [Bio](#) | [LinkedIn](#) | [Map](#) | [cozen.com](#)

From: Golden, David <dgolden@constantinecannon.com>

Sent: Tuesday, April 20, 2021 4:35 PM

To: Raleigh, Christopher <CRaleigh@cozen.com>; Cannon, Stephen <scannon@constantinecannon.com>; Greenstein, Seth <sgreenstein@constantinecannon.com>; Levine, Richard <rlevine@constantinecannon.com>; Fore, Wyatt <wfore@constantinecannon.com>; Rodriguez Lopez, Paulette <prodriguezlopez@constantinecannon.com>; Samantar, Osob <osamantar@constantinecannon.com>; rpianka@trucking.org

Cc: Gerald.Morrissey@hklaw.com; chris.nolan@hklaw.com; pkeane@cckd-ny.com; jdemay@cckd-ny.com;

EXHIBIT 2

REQUESTS FOR DOCUMENTS

1. All documents and communications exchanged between You and (a) IMCC and/or (b) other IMCC members relating to chassis choice.
2. All documents and communications exchanged between You and (a) IMCC and/or (b) other IMCC members relating to the filing of the Complaint before the Federal Maritime Commission in the proceeding entitled *Intermodal Motor Carriers Conference, et al. v Ocean Carrier Equipment Management Associations, Inc., et al.*, FMC Docket No. 20-14.
3. All documents and communications relating to every container that You have transported in interstate and intra-state commerce since January 1, 2017 as a Carrier Haulage movement.
4. All documents and communications relating to every container that You have transported in interstate and intra-state commerce since January 1, 2017 as a Merchant Haulage movement, being certain to include all documents and communications which identify the following: (i) the name of the chassis provider; (ii) whether that chassis provider was a Default Provider; (iii) whether a request was made to change the Default Provider; (iv) whether the request was granted or denied; (v) the facility where the chassis was picked up; (vi) the facility where the chassis was returned; (vii) the amount paid to the chassis provider; and (viii) the amount billed by You to your customer for use of the chassis.
5. The tariff, circular, rate sheet or other document which contains or sets forth the daily rate(s) charged by You to your customers (1) for the use of chassis owned by You; (2) for the use of chassis provided a Default Provider; and, (3) for the use of chassis provided by any other chassis provider or equipment lessor.
6. All documents relating to the purchasing and/or leasing of chassis by You.

7. All documents relating to the terms under which chassis are provided to You by any chassis provider.

8. All documents relating to any contracts or agreements between You and any third party pursuant to which the motor carrier is responsible for ensuring a sufficient supply of chassis at any physical location, including any copies of agreements, negotiations, or failures to reach an agreement.

9. All documents relating to any efforts by You to negotiate a reduction in the chassis rate(s) charged by a Default Provider.

10. All documents and communications which relate to the claim that You were overcharged for chassis used for Merchant Haulage movements.

11. All documents and communications which relate to the claim that You suffered financial injury through the payment of overcharges for chassis used for Merchant Haulage movements.

EXHIBIT 3

Raleigh, Christopher

From: Raleigh, Christopher
Sent: Wednesday, May 19, 2021 11:15 AM
To: 'Golden, David'; Fore, Wyatt; Cannon, Stephen; Greenstein, Seth; Levine, Richard; Rodriguez Lopez, Paulette; Samantar, Osob
Cc: Gerald.Morrissey@hklaw.com; chris.nolan@hklaw.com; pkeane@cckd-ny.com; jdemay@cckd-ny.com; drose@mdslaw.com; Rohde, Wayne; Sobotta, Kathryn
Subject: RE: FMC Docket No. 20-14, IMCC v. OCEMA, et al.

Dear David and Wyatt,

Following your conference call with Respondents' counsel yesterday afternoon, we confirm the following:

- Objection to production of documents by Best Transportation Inc., Devine Intermodal, Excargo Services and Triple G Express Inc. based on geographic limitation – for the reasons discussed during our call, we believe that the objection does not apply to the documents sought from these four motor carriers. You have agreed to discuss this with your clients.
- Subpoena RFP Nos. 10 and 11: this will clarify that production of the following categories of documents will satisfy these requests: (1) invoices rendered by chassis providers to Motor Carriers for Use Charges incurred during Merchant Haulage moves; (2) invoices rendered for those Merchant Haulage moves by Motor Carriers which assess charges to their customers for the use of those chassis; and, (3) other business records which show the charges assessed by equipment providers for such chassis and the charges from Motor Carriers to their customers for the use of those chassis.
- Amended Confidentiality Stipulation and Order - Respondents consent to the counter-proposal which you circulated on Monday evening and understand you will confer with K&L Gates as to whether it is acceptable to the IEPs.
- For the reasons discussed, Respondents propose to extend the period of time to complete the production of documents from June 1, 2021 to August 2, 2021. If Complainant agrees, we can discuss the preparation of a submission to Judge Wirth which describes the circumstances, discussed during our call, that would support an application for this extension.

Please let us know if you need any further clarification regarding the above. Otherwise, we look forward to your response.

Sincerely,



Christopher Raleigh
Member | Cozen O'Connor
3 WTC, 175 Greenwich Street - 55th Floor | New York, NY 10007
P: 212-908-1245 F: 866-591-9125
[Email](#) | [Bio](#) | [LinkedIn](#) | [Map](#) | [cozen.com](#)

From: Golden, David <dgolden@constantinecannon.com>
Sent: Sunday, May 16, 2021 6:58 PM
To: Raleigh, Christopher <CRaleigh@cozen.com>; Fore, Wyatt <wfore@constantinecannon.com>; Cannon, Stephen

EXHIBIT 4

Raleigh, Christopher

From: Fore, Wyatt <wfore@constantinecannon.com>
Sent: Thursday, May 20, 2021 2:14 PM
To: Raleigh, Christopher; Golden, David; Cannon, Stephen; Greenstein, Seth; Levine, Richard; Rodriguez Lopez, Paulette; Samantar, Osob
Cc: Gerald.Morrissey@hklaw.com; chris.nolan@hklaw.com; pkeane@cckd-ny.com; jdemay@cckd-ny.com; drose@mdslaw.com; Rohde, Wayne; Sobotta, Kathryn
Subject: RE: FMC Docket No. 20-14, IMCC v. OCEMA, et al.

****EXTERNAL SENDER****

Dear Counsel:

Thank you for the summary. Below you'll find our responses.

Geographic Limitations. As discussed on the call, we cannot accept your changes to the geographic discovery limitations. The [Joint Status Report](#) (at 1) memorializes an agreement between counsel to limit discovery to four geographic areas: the Ports of Long Beach and Los Angeles, the Port of Savannah, intermodal terminals in the Chicago area, and intermodal terminals in the Memphis area. The parties came to this agreement at Judge Wirth's suggestion ([Order](#) at 9): "Specifically, the parties are instructed to discuss whether there are facts to which they could stipulate, whether it would be helpful to initially limit discovery (for example to a limited geographic area or time period), and whether it would be helpful to conduct limited discovery prior to filing a motion seeking summary decision, with additional discovery permitted if the motion is denied." As a result, under this agreement, Best Transportation Inc., Devine Intermodal, Excargo Services and Triple G Express Inc. are outside the scope of discovery for Subpoena Requests 3-11 because they do not operate in those four geographic areas.

Subpoena RFPs Nos. 10 & 11. We acknowledge your clarifications articulated below, and you will receive documents (including invoices, data, price sheets, and/or other documents kept in the ordinary course of business) responsive to those clarifications. Objections, including those articulated in the May 3, 2021 letter from David Golden to Christopher Raleigh, are reserved.

Amended Confidentiality Stipulation & Order. Thank you for the response. We have sent the proposed final version of the amended joint confidentiality stipulation and order for your review and approval.

Extension. August 2 is amendable to us, so long as the parties can agree to rolling productions on a schedule to be agreed upon by the parties.

Sincerely,
Wyatt Fore

From: Raleigh, Christopher <CRaleigh@cozen.com>
Sent: Wednesday, May 19, 2021 11:15 AM
To: Golden, David <dgolden@constantinecannon.com>; Fore, Wyatt <wfore@constantinecannon.com>; Cannon, Stephen <scannon@constantinecannon.com>; Greenstein, Seth <sgreenstein@constantinecannon.com>; Levine, Richard <rlevine@constantinecannon.com>; Rodriguez Lopez, Paulette <prodriguezlopez@constantinecannon.com>; Samantar, Osob <osamantar@constantinecannon.com>
Cc: Gerald.Morrissey@hklaw.com; chris.nolan@hklaw.com; pkeane@cckd-ny.com; jdemay@cckd-ny.com; drose@mdslaw.com; Rohde, Wayne <WRohde@cozen.com>; Sobotta, Kathryn <KSobotta@cozen.com>
Subject: RE: FMC Docket No. 20-14, IMCC v. OCEMA, et al.